



AN ACT REVISING LAWS RELATED TO THE SALE OF HEMP PRODUCTS TO CONSUMERS;
PROHIBITING THE SALE OF ~~EDIBLE~~ HEMP PRODUCTS THAT CONTAIN THC TO CONSUMERS;
PROVIDING ~~A DEFINITION~~ DEFINITIONS; AND PROVIDING AN IMMEDIATE EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Sale of edible hemp PRODUCT CONTAINING THC TO CONSUMERS prohibited. (1) Unless authorized as a food or drug by the United States food and drug administration, ~~an edible product containing a~~ hemp product containing total delta-9 tetrahydrocannabinol (THC) may not be sold to a consumer in the state.

(2) (a) For the purposes of this section, "hemp" means the plant species *Cannabis sativa* L. and any part of that plant, ~~including the seeds and all derivatives, extracts, cannabinoids, isomers, acids, salts, and salts of isomers, whether growing or not~~ the following definitions apply:

(a) "Consumer" means an individual who is a member of the public, takes possession of the hemp product, and does not offer the hemp product for resale.

(b) "Hemp" has the same meaning as provided in 80-18-101.

(b) ~~The term does not include synthetic cannabinoids.~~ (c) "Hemp product" means a product that contains postharvest hemp and that is intended for consumption, smoking, vaping, or another method of administration.

Section 2. Codification instruction. [Section 1] is intended to be codified as an integral part of Title 50, chapter 31, part 2, and the provisions of Title 50, chapter 31, part 2, apply to [section 1].

Section 3. Effective date. [This act] is effective on passage and approval.

- END -

I hereby certify that the within bill,
SB 375, originated in the Senate.

Secretary of the Senate

President of the Senate

Signed this _____ day
of _____, 2025.

Speaker of the House

Signed this _____ day
of _____, 2025.

SENATE BILL NO. 375

INTRODUCED BY M. NOLAND

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